

April 22, 2024

Mr. Wayne Kistler (610-395-0371)
HALE TRAILER BRAKE & WHEEL
5361 Oakview Drive
Allentown, PA 18104

Proposal No. 11654-041924-CB
RE: STANDARD INDUSTRIAL PRESS BRAKE

Dear Wayne,

In response to your request, it is a pleasure to offer the following information for your review.

If you have any questions or need additional information, please do not hesitate to call me.

Please review the Terms and Conditions of Sale.

Mid Atlantic Machinery, Inc. looks forward to a continuing relationship with your Company, helping you to fulfill all your Metal Fabricating needs.

Sincerely,

Chris Barsanti

Chris Barsanti
CB/rt

Date: April 22, 2024

Proposal No.: 11654-041924-CB

STANDARD INDUSTRIAL **AB150-12 PRESS BRAKE**

MODEL AB150-12 PRESS BRAKE

TONNAGE FORMING/PUNCHING	150 / 100
DISTANCE BETWEEN HOUSINGS	10'-5"
BED/RAM LENGTH	12'
BELOW GRADE	no
WEIGHT (<i>LBS.</i>)	24,000
BED HEIGHT	38"
BED WIDTH	5"
OVERALL HEIGHT (approx.)	108"
THROAT DEPTH	6"
RAM STROKE (<i>FULLY ADJUSTABLE</i>)	6"
OPEN HEIGHT (<i>MAXIMUM HEIGHT</i>)	13"
CLOSED HEIGHT (<i>MINIMUM HEIGHT</i>)	7"
HORSEPOWER	20
RAM SPEEDS (<i>IN INCHES PER MINUTE</i>)	
APPROACH	109
PRESS	25
RETURN	175

Features Include:

- ★ Off The Shelf, Readily Available from Your Local Suppliers
- ★ Groove in Bed and Ram Clamps for American Style Tooling
- ★ Perfect for full length and off-center loading applications
- ★ Full Tonnage across Bed and Ram
- ★ Full Tonnage throughout Stroke
- ★ Simple limit switch ram control (CNC optional)
- ★ Counterbalance for Punching applications
- ★ UL508A compliant
- ★ Typical +, - .001" Repeatability
- ★ 5 Year Parts Warranty + 5 Year Limited Onsite Labor Warranty
- ★ Lifetime Telephone Support at No Charge
- ★ (2) 24" Work Support Arms
- ★ Manifold centralized lube system
- ★ Hand/Foot sequence w/footswitch
- ★ T-slot across front edge of brake bed

AB150-12 w/features listed above for \$ 97,100.00



DELIVERY: 12-14 Weeks
F.O.B.: Clarksdale, MS
TERMS: 35% Deposit with Order, 55% Prior To Shipment; Net 20 Days
(With Approved Credit)

Price for machine plus options (please circle options) \$ _____
(Prepay & add freight to invoice)

Purchase order number (if applicable) _____

Please specify machine voltage _____

Accepted By: Wayne Kistler

Date

March 2024 Model AB Brake Options

(AB100-10 thru AB400-14)

Safety

Light Curtain with Footswitch

Floating blank key-switch included, some programmability. Side barriers included to completely protect throat area of machine. 1 year warranty. **\$6,500.00**

Other brands of light curtains available at special request

Laser Guarding System

Wraps lasers around punch to allow operator closer to pinch-point and still be O.S.H.A. approved. 1 year warranty—Virtual training session included. **\$16,400.00**

(Laser Guard system NOT recommended for heavy punching/bottoming applications)

Compliance Options including UL Listing, CSA, ZED

As standard all components are U.L. listed but the system as a whole is not U.L. compliant. For U.L. compliant machine **\$2,500.00**

NOTE! This price does not include U.L. officer sign off at destination—that is the responsibility of the customer For other listings *Price per quote*

Additional Footswitch and Pedestal Control

\$2,100.00

For 2nd operator

Low Speed Retract

Ram returns in slow press speed for handling of large work pieces.

\$800.00

Safety Guarding for rear of press brake

From 6' to 14'.

\$5,500.00

Comes with swinging gates and interlocking system for shut down while open. Custom guarding systems available.

Operational Controls

Auto Return of Ram

Normal operation of ram requires operator to release footswitch to allow ram to return to upper limit. This option makes the ram return automatically even if footswitch is still depressed.

\$900.00

Decompression System

REQUIRED FOR BOTTOMING APPLICATIONS—allows oil pressure to bleed off to reduce shock to hydraulic system.

\$1,200.00

Lubrication System

Automatic Lubrication System (air power required)

Automatically pumps EP-1 grease through lubrication system via a timed system. Also includes flow adjustable injectors. Includes auto-shutoff with warning light when reservoir is empty.

\$5,700.00

Note: A manifold lubrication system that brings all lube points to one area comes standard on all machines

Extended Warranty

This package includes:

- ◆ A 7 year parts in lieu of standard 5 year parts warranty
- ◆ A 2 year PLC and CNC warranty
- ◆ A 5 year onsite limited labor warranty

100 ton through 400 ton press brake

\$7,500.00

Support Arms and Accessories

NOTE! All brakes come standard with (2) 24" basic work supports. T-slot support arms have precision t-slot bars added to set gravity stops.

T-Slot Support Arms	
24" T-Slot Support Arm	\$650.00 (ea.)
36" T-slot Support Arm	\$900.00 (ea.)
48" T-slot Support Arm	\$1,100.00(ea.)
For imbedded scales in arms	Add \$200.00
Gravity Stop for t-slot support arm	\$400.00 (ea.)

5/8" T-slot across front edge of bed

Allows left to right movement of t-slot support arms

INCLUDED

CNC Sheet Assist/ Follower

Heavy duty sheet follower to raise up and down with work piece controlled through CNC control (optional). Handles up to 400 lbs.

\$42,900.00

Parking Option

\$3,900.00

Quick-Release Linear Work Support System

Quick-change, quick-disconnect style support arms with heavy duty, smooth transition roller guides for easy arm movement. Multiple adjustment points on arms for super precision placement.

(2) 24" Arm System	\$5,900.00
(2) 36" Arm System	\$7,100.00



Controls and Gauging

Sophisticated

840 2D Graphical Control 1-6 Axis

Available up to 10 axis

- ★ Multi-touch touchscreen allowing operator to draw parts/tooling with finger/stylus
- ★ Remote support/service and diagnostics via ethernet
- ★ Windows 10 operating system
- ★ Fully 2D Graphical control
- ★ 15" color screen on pendant
- ★ Crowning correction in degrees (*crowning sold separately*)
- ★ 2D identification of best bending sequences
- ★ 2D graphical Offline software for desktop programming
- ★ 2D collision detection
- ★ Unlimited job storage via USB & Ethernet
- ★ X, Y, R, Z1-Z2, X-Prime programmability
- ★ 30,000 hard drive programs
- ★ Programmable delay & retract at pinch point
- ★ Inch/mm conversion
- ★ Auto return of ram included
- ★ Low speed retract included
- ★ Dwell/decompression included
- ★ Two days onsite at customer's facility/contiguous U.S.—One day machine inspection/One day training



840 X/Y axis w/29" gauge travel for 14' and shorter up to 600 tons **\$38,900.00**

2D Off-line programming software

INCLUDED

NOTE: Installation/Training for 2D Off-line software is conducted remotely by scheduled appointment and not during onsite training.

Programmable CNC Ram tilt Allows you to program the desired ram tilt within the programmable jobs of the CNC. 10' and longer brakes only **\$3,500.00**

R Axis Add	\$6,000.00
39" of gauge travel in lieu of 24"	\$7,900.00
Programmable tonnage	\$700.00
2D graphical off-line software	INCLUDED
Additional finger	\$1,500.00
Radan 3D DXF/DWG File Transfer Capability	Contact for quote
Z1-Z2 Axis	\$15,900.00 (must have R axis)

850W 19" screen, 3D viewer CNC Control Upgrade **\$14,900.00**

Controls and Gauging

Moderate

630 Control with Tooling Graphics 1-4 axis

Available up to 4 axis + CNC CROWNING

- ★ Easy to use but extremely versatile control with on-screen 2D Tooling graphics
- ★ 10" color touchscreen mounted on pendant
- ★ 2D graphical Offline software for desktop programming available optionally
- ★ Available with X/ Y/ R and CNC Crowning axis programmability (crowning optional)
- ★ Thousands of hard drive job storage plus unlimited job storage via USB port
- ★ Extensive tooling library
- ★ Programmable delay and retract at pinch point
- ★ Inch/mm conversion
- ★ 29" of X axis gauge travel (*optional 39"*)
- ★ 8" adjustable manual R or optional power R
- ★ Auto return of ram included
- ★ Low speed retract included
- ★ Dwell/decompression included
- ★ Two days onsite at customer's facility/contiguous U.S.—One day machine inspection/One day training



630 w/Y axis control only (no backgauge—Onsite training included)	\$17,400.00
630 X/Y axis 29" gauge travel for AB100-12/14—AB600-12/14	\$33,500.00

2D Off-line programming software

INCLUDED

NOTE: Installation/Training for 2D Off-line software is conducted remotely by scheduled appointment and not during onsite training.

Programmable CNC Ram tilt Allows you to program the desired ram tilt within the programmable jobs of the CNC. *10' and longer brakes only*

\$3,500.00

R Axis Add

\$6,000.00

39" of gauge travel in lieu of 24"

\$7,900.00

Programmable tonnage

\$700.00

Additional finger

\$1,500.00

Radan 3D DXF/DWG File Transfer Capability

Contact for quote

Controls and Gauging

Simple

2-3 Axis basic CNC control

NOTE! The Automec 300 control is specifically for users who want the most basic X, Y and R programming available.

Automec 300 Series Control with 24" of gauge travel

- ★ 300 programs
- ★ 11 digit part numbers
- ★ Teach mode
- ★ Tooling library
- ★ Auto ram reference
- ★ Ram depth mode + Bend Allowance
- ★ Ram Angle Mode
- ★ Gauge retract/delay
- ★ Onsite training for Automec control

CNC300/G24HD 2 Axis (24" travel) AB100-6 up to AB325-12 \$28,500.00
(Note: above available in 48" travel)

Add R Axis Add \$8,200.00

Add 48" Travel Add \$16,200.00

Note: Standard mechanical ram limit switches are included as back-up.

NON CNC

Go-To Power Backgauge and Non CNC Ram Control

NOTE! The Four Position in-line Depth Stop and the Go-To backgauge can be bought separately but they work very well together as a low cost manual X + Y axis control

Y Axis Only Ram Control

Four Position In-Line Depth Stop Mechanical Ram Control

Manual ram control that allows operator to pre-set up to 4 different ram depths/angles by adjusting mechanical limits on the side of the brake. The operator can choose from any of the 4 positions from a selector switch located on the 2 hand control pedestal out in front of machine.

\$2,500.00

Simple Go-To X Axis Only Backgauge

X axis 24" travel Dual drive Go-To power backgauge
For up to AB325-14 only

\$16,200.00

Tooling

NOTE! NO DIES OR DIE HOLDERS ARE INCLUDED AS STANDARD—ALL DIES MUST BE ORDERED OPTIONALLY

NOTE: THE CUSTOMER HAS FULL RESPONSIBILITY FOR HOW WELL DIE SETS WORK FOR THEIR APPLICATIONS. PLEASE REVIEW PRESS BRAKE OPEN HEIGHT & STROKE AND TOOLING STACK HEIGHTS TO INSURE PROPER DIE PENETRATION!

Dies quoted below are subject to 1 year die manufacturer's warranty.

FLAME HARDENING IS OPTIONAL—CONTACT FOR QUOTE

Four Way Die Sets

#225 Tooling package for 18 gauge up to 3/16" pl.

(1) 2" net height die holder

(1) 3.75" long x 1 1/8" wide, 85 degree punch with 3/64" radius

(1) 2.25" square die block with 1/2", 3/4", 1", and 1.25" v die openings at 85 degrees.

7.5" STACK HEIGHT—note: consider die penetration

10' in length	\$9,800.00
12' in length	\$10,400.00
14' in length	\$11,800.00

#325 Tooling package for 12 gauge up to 1/4" plate

(1) 2" net height die holder

(1) 3 3/4" long x 1 1/2" wide, 85 degree punch with 3/64" radius

(1) 3 1/4" square die block with 3/4", 1", 1 1/2" and 2" v die openings at 85 degrees.

9" STACK HEIGHT—note: consider die penetration

10' in length	\$11,100.00
12' in length	\$12,800.00
14' in length	\$13,500.00

#475 Tooling package for 10 gauge up to 3/8" plate

(1) 2 1/2" net height die holder

(1) 3 1/4" long x 2" wide, 85 degree punch with 1/8" radius

(1) 4 3/4" square die block with 1", 1 1/2", 2 1/2" and 3" wide v die openings at 85 degrees. *Total of 10.5" Stack height*

12' in length	\$16,400.00
14' in length	\$17,400.00

Tooling

#575 Tooling package for 10 gauge up to ½" plate

(1) 2 1/2" net height die holder

(1) 3 3/4" long x 1 1/2" wide, 85 degree punch with 1/8" radius

(1) 2 3/4" long x 2 1/2" wide, 85 degree punch with 1/4" radius

(1) 5.75" square die block with 1", 2", 3" and 5" v die openings at 85 degrees. *Total of 12" Stack Height w/tall punch and 11" stack height with short punch*

12' in length \$22,700.00

14' in length \$24,700.00

Die Holders/Spacers for American style tooling—Not required for 4 way die sets

3" x 3" x 10' \$4,900.00

3" x 3" x 12' \$5,400.00

3" x 3" x 14' \$5,900.00

Crowning and Bed Clamping Systems

NOTE: Crowning is rarely needed for the AB due to the full tonnage capability the entire length of the bed but certain applications can benefit from a crowning unit. Contact the factory for more information.

Manual and CNC crowning units used for fine tuning forming applications. When using with 4 way die sets add \$800.00 for clamps to hold four way die blocks from 2.25" up to 4.25". Larger four way die sets will require E-wide or larger crowning unit.

CROWNING

FOR DIES UP TO 3.5" WIDE

	Manual	**CNC Autocrown	**CNC Autocrown w/hyd. bed clamping
	**Requires 600-800 series controls		
10'	\$18,900.00	\$22,700.00	\$28,800.00
12'	\$20,200.00	\$24,000.00	\$31,500.00
14'	\$22,400.00	\$26,000.00	\$33,700.00

E-WIDE CROWNING FOR DIES UP TO 6" WIDE

	Manual	**CNC Autocrown	**CNC Autocrown w/hyd. bed clamping
	**Requires 600-800 series controls		
10'	\$25,600.00	\$29,300.00	\$37,800.00
12'	\$27,400.00	\$31,200.00	\$41,400.00
14'	\$30,700.00	\$34,400.00	\$46,600.00

For crowning for V die openings larger than 6" contact factory

New Standard Premium, heavy duty hardened crowning systems, also available

Quick-Change Ram Clamping Systems

Tooling for Wila quick-change ram clamping systems quoted require: American Style Tooling + Safety Tangs with all punches

Wila Hydraulic Quick-Change, Power Ram Clamping Systems

	American	New Standard Pro
10'	\$20,300.00	\$20,600.00
12'	\$21,500.00	\$22,000.00
14'	\$23,300.00	\$23,600.00

New Standard Premium, heavy duty hardened clamping systems, also available

Paint Color

BLUE is standard on all machines—Charcoal is available at no charge but must be requested.

Special Paint Color (single color industrial enamel only)

A sample is required

\$1,200.00

High Speed Systems

Horsepower will increase with Hi-Speed Systems

Tonnage	<u>Standard System</u>			<u>Hi-Speed System</u>			<u>Price</u>
	App	Press	Ret	App	Press	Ret	
100/150				200	24	260	\$7,900.00
200	107	20	139	183	20	236	\$7,100.00
250	102	16	132	150	16	195	\$7,100.00
325	90	18	116	159	18	127	\$7,100.00
400	110	17	106	173	17	130	\$7,600.00

For other High Speed Systems Contact Factory

Removable and Non-Removable Bed & Ram Width Extensions

Machining required for Removable Flanges for up to 12' machines
 (\$1,600.00 each for bed or ram)

\$4,500.00

Removable 5"x 5" Angle flanges-- MUST INCLUDE ABOVE MACHINING

10" total additional width x 10' long between end housings only.

For flanges longer than 10' contact factory

(\$6,100.00 each for bed or ram)

\$13,900.00

Non-Removable Permanent Bed and Ram Flanges

Price below for 12' overall and shorter brakes (contact factory for longer brakes)

11 ½" wide x 10' Bed and Ram Flanges

(Between Housings only)

\$7,400.00

14" wide x 10' Bed and Ram Flanges

(Between Housings only)

\$8,400.00

18" wide x 10' Bed and Ram Flanges

(Between Housings only)

\$11,600.00

Other size Non-removable flanges are available upon request

Extra Open Height, Throat Depth, Stroke, Horns

Tonnage	12" Horn Ext. B & R	2" Extra Throat	4" Extra Throat	2" Extra Stroke	2" Ex. Open Ht. (per every 2")
100	\$3,900.00	\$3,500.00	\$4,500.00	**\$5,900.00	\$700.00
150	\$4,100.00	\$3,800.00	\$4,800.00	**\$5,900.00	\$800.00
200	\$4,500.00	\$3,900.00	\$4,900.00	\$6,500.00	\$900.00
250	\$4,700.00	\$4,200.00	\$5,200.00	\$6,500.00	\$900.00
325	\$5,000.00	\$4,800.00	\$7,000.00	\$7,000.00	\$1,100.00
400	\$5,300.00	\$5,400.00	\$7,400.00	\$7,000.00	\$1,200.00

Horn extensions provide 24" of extra bed and ram length. Longer extensions are available upon special request. Tonnage is limited on horns past the end frames to 10% of overall machine tonnage.

Consult factory for special changes not listed above. All frame changing options will be applied to new order machines only.

**** NOTE:** Longer Stroke NOT available on 6', 8' or 10' brakes

NOTE: When ordering more than 6" of extra open height or throat depth on any tonnage consult factory for price.

NOTE: When ordering extra stroke, you do not automatically get extra open height. When ordering extra open height, you do not automatically get extra stroke. Both extra open height and extra stroke are separate options.

Start-Up / Training / Maintenance Service

NOTE! Onsite factory training/start-up is not included or required with purchase of a new press brake. Due to the simplicity of our machinery formal training is rarely required. All CNC Systems already include onsite training in quoted price.

Prior to arrival of our technician, the machine must be fully rigged in place, level, bolted down, oil in reservoir and hooked up electrically

Two days onsite at customer's facility/contiguous U.S.—One day machine inspection/One day training

Pacific/Mountain Time Zone:	\$4,500.00 (net)
Central Time Zone	\$3,500.00 (net)
Eastern Time Zone	\$4,100.00 (net)

Add \$1,500.00 for each additional day required.

Deposit/Order Entry

A **35% NON-REFUNDABLE** deposit is required at the point of order entry and the delivery schedule will not begin until the deposit is received at Standard Industrial. Customer is also required to pay for and accept delivery of machine(s) at previously agreed upon month of completion.

Voltage

If the machine is 50 H.P. or more, there will be a charge for 230, 208 or 200 volts. The standard voltage is 230-3-60 up to 40 h. p. but can be supplied up to 480-3-60 at no charge. 50 h. p. machines and above are standard with 480-3-60. Other voltages, phases and hertz are available but are subject to price increases.

Retro-Fit NOTE:

All Prices listed in these options pages are available with the purchase of a new press brake AT THE POINT OF ORDER ENTRY. After orders have been placed, any added or changed options will be subject to retro-fit prices.

If ordering options for retro-fit in the field, many of these options are subject to crating charges for safe shipping purposes. Large items like backgauges will have crating charges as well as additional charges to ease the retro-fitting process.

NOTE: No tooling, gauging or oil is included as standard with the purchase of a new press brake. Tooling is available optionally. Customer will need to supply Mobil DTE24 or equivalent hydraulic oil (contact factory for amount).

WARRANTY STATEMENT

The main frame and ram are warranted for structural integrity (cracks in the welds) for Five years. The drive components such as shafts, bearings and slides are warranted for Five years, and purchased hydraulic and electric components (not PLC) for Five years. Any PLC or PLC related items or CNC options have a 2 year warranty. Tooling and tooling related items are subject to the manufacturer's warranty, typically 1 year.

Limited onsite labor is included as part of the 5 year warranty but it is **ONLY** included as part of the warranty with express written consent of manufacturer after all troubleshooting has been fulfilled by customer.

All Prices Are Subject To change At Any Time. Customer is responsible for freight, rigging, leveling and electrical hook-up unless otherwise agreed upon.

Terms: 25% deposit required at the point of order to begin delivery schedule or hold quick delivery machine. All Prices are fob Clarksdale, MS and are in U.S. dollars.

The customer is responsible for all applicable local, state and federal taxes and tariffs. Customer is required to take delivery of and pay for machine at agreed upon time of completion.

The customer is responsible for all applicable local, state and federal taxes and tariffs. Customer is required to take delivery of and pay for machine at agreed upon time of completion. Standard Industrial is only responsible for the operation of the machine itself and specifically not responsible for the customer's application. Any alteration to machine will forfeit the warranty without written approval by Standard Industrial. Standard will not be held responsible if the machine does not perform to the customer's expectations due to the customer's assumption that Standard is familiar with their application. This includes all dies and die related items, CNC, PLC, supports, peripherals, options and add-ons of any kind.

All pricing and delivery is subject to change at any time

DELIVERY SCHEDULE—subject to change

Quotation Date and Quote Number:

Prices are F.O.B. Clarksdale, MS

Current Delivery Starts at Receipt of 25% Non-Refundable Deposit:

Customer:

Hale Trailer Brake & Wheel

Contact:

Wayne Kistler

Equipment Price:

\$97,100.00

Equipment:

Standard Industrial

PAYMENT OPTIONS:

	Option 1	Option 2	Option 3	Option 4	Option 5
Term (Months)	36	48	60	72	84
Monthly Payment	\$3,103.32	\$2,413.91	\$1,996.38	\$1,731.29	\$1,542.92
Payment Factor	0.03196	0.02486	0.02056	0.01783	0.01589
Purchase Option	\$1.00	\$1.00	\$1.00	\$1.00	\$1.00
Weekly Payment	\$716.15	\$557.06	\$460.70	\$399.53	\$356.06
Hourly Payment	\$17.90	\$13.93	\$11.52	\$9.99	\$8.90

2024 Section 179 Federal Income Tax Deduction:

This deduction allows a small manufacturing company that spends less than \$3,050,000 but no more than \$4,270,000 million a year on equipment to deduct the first \$1,220,000 from their taxable income. 60% Bonus Depreciation is taken after deduction limit has been reached.

Section 179 Deduction:	\$97,100
60% Bonus Depreciation Deduction:	\$0
Total First Year Deduction:	\$97,100
Total Tax Benefit:	\$31,072
Total Deduction x 32% (Assumed Federal Tax Bracket)	
Equipment Cost After Tax Savings	\$66,028

- Terms and conditions are subject to credit approval/market changes and may vary based on credit qualifications.
- Advance payments may be required and rates will be fixed for the term at commencement.
- Companies may also be eligible for additional state and local tax deductions plus interest deductions.
- These calculations are estimates only and every company's tax situation is different.
- MFR is not qualified tax advisor. This worksheet must not be interpreted as either a legal opinion or tax advisory.
- You should always consult with your accountant prior to making any purchase based on tax consequences.
- This document is for informational purposes only and does not constitute a commitment from MFR to provide financing.



For additional financing options and information, please contact:

Lisa Luedtke
 lluedtke@mfresources.com
 320-281-4200 - Direct
 320-292-4610 - Mobile

Mid Atlantic Machinery, Inc.

TERMS AND CONDITIONS GOVERNING ALL QUOTATIONS AND ORDERS

This quotation from Mid-Atlantic Machinery, Inc. (hereinafter referred to as "MAM") does not constitute an offer but is an invitation to place an order. All orders are subject to written acceptance by "MAM" upon sale confirmation and/or acceptance by manufacturers or suppliers. If an order based upon this proposal is accepted by "MAM", it is agreed that the order shall be subject to the terms and conditions set forth herein below. It is also understood that if the order placed is pursuant to a government contract, it shall also be subject to any conditions required by laws of the United States and mandatory terms of such government contract as are disclosed to "MAM". No contract term or condition shall be amended, deleted or added without the express written consent of "MAM" and "MAM" hereby gives notice of objection to any terms set forth in any other writing which are in addition to or different from the terms set forth in this quotation.

1. PRICES

- (a) All sales are made subject to all State, County, City and Federal use, sales and excise taxes, the amount of which the purchaser agrees to pay. Any such tax may be billed to the purchaser as part of the selling price or may be separately billed at any time by the seller, if the seller is required by any Taxing Authority to collect or pay such tax.
- (b) Are F.O.B. factory, at point of manufacture, or port of entry, unless otherwise specified.
- (c) Buyer shall pay all transportation charges and any additional charges for special packaging which the buyer requests.

2. SHIPPING SCHEDULE:

- (a) Subject to prior sale and confirmation by factory at time of acceptance of order.
- (b) Subject to unavoidable delays caused by strikes, accidents or other causes beyond our control including but not limited to acts and regulations of the Federal Government.

3. WARRANTY: The goods that are the subject of this sale have been manufactured by others. "MAM" makes no warranties, express or implied, in connection with this sale and without limiting the generality of the foregoing, hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose. The warranties available to buyer are those extended by the manufacturer to "MAM" to the extent that they are in force and effect, which warranties are on file at the offices of "MAM" and shall be assigned by "MAM" without recourse at buyer's request. Performance and production data, including accuracy, capacity and capability of machines and tools are estimates only and not guarantees since they are dependent upon varying future production factors and conditions not within "MAM" control. No agent, employee or representative of "MAM" has any authority to bind "MAM" to any affirmation, representation or warranty concerning the goods that are the subject of this quotation beyond that specifically included in the written quotation. "MAM" shall have no obligation to install or provide improvements or changes in design adapted by the manufacturer or "MAM" for similar goods subsequent to acceptance of buyer's order. In the event this quotation relates to used machinery, it is hereby agreed that "MAM" makes no warranties, express or implied in connection with the sale and hereby without limiting the generality of the foregoing, hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose and the buyer takes the goods sold hereby in an "as-is", "where-is" condition.

4. PAYMENT TERMS: As stated on proposal. Subject to credit approval at time of acceptance of order unless otherwise stated in quotation. Any unpaid balance thereafter shall be subject to a service charge of up to 1 1/2% per month or the maximum allowed by law, whichever is less. There shall be no extension or change in the time for payment due to delays in installation and/or delays in operation of the equipment caused by damage, warranty service or warranty replacement of parts.

5. ACCEPTANCE OF ORDERS:

- (a) Orders based on our quotation are continuous, outstanding and made by a duly authorized party.
- (b) Orders based on our quotation are subject to acceptance upon sale confirmation and/or acceptance by manufacturer(s) or suppliers.

6. TITLE: All quotations are F.O.B. factory, point of manufacture or port of entry unless other specified. Delivery of equipment to a carrier by manufacturer(s) or supplier(s), consigned by you or as you may direct, shall constitute transfer of title, ownership, possession and property in and to the equipment at such point of delivery, and such carrier shall thereafter be deemed to be acting for you and the equipment shall thereafter be at your risk.

7. CANCELLATION: Orders placed pursuant to this quotation can be cancelled only with "MAM" consent. In the event of such consent, you shall pay to "MAM" promptly upon receipt of invoice from it:

- (a) Contract price for all products which shall have been completed prior to receipt of notice of cancellation.
- (b) All actual costs made or incurred by "MAM" in connection with the uncompleted portion of the order plus normal profit of the total contract price as partial liquidated damages.
- (c) Cancellation charges if any of "MAM" on account of its purchasing commitments made under the order.
All machines and tools paid for by buyer hereunder shall be delivered to buyer in their "as-is" condition at the date of such cancellation at the sole cost and expense of buyer.

8. PROPERTY QUOTATION AND OTHER MATERIALS: This quotation and all drawings, specifications, materials, patterns and special purpose manufacturing aids which are supplied to you by "MAM" shall be kept in confidence and shall be listed and maintained in suitable condition at the expense of buyer and are to be considered the property of "MAM" held on consignment by buyer and to be insured while in buyer's possession. Such articles and all copies thereof from any source shall be returned to "MAM" at any time upon request and shall not be used for any third parties without the express permission of "MAM".

9. APPLICABLE LAW: The contract resulting from the acceptance of an order pursuant to this quotation shall be governed by and construed according to the laws of the Commonwealth of North Carolina.

10. PERFORMANCE IN EVENT OF DEFAULT: In addition to the rights and remedies conferred upon "MAM" by law, "MAM" will not be required to proceed with the performance of any order or contract if you are in default in the performance of any order or contract with "MAM" and in case of doubt as to your financial responsibility: shipments under an order may be suspended or sent sight draft with bill of lading attached by "MAM".

11. ERRORS: Any clerical errors are subject to correction and must be brought to the attention of "MAM" as soon as suspected.

12. BUYER'S USE: Buyer agrees that its employees, when operating machinery and equipment purchased hereunder, will comply with all operating procedures set forth in manufacturers operator's manuals and instruction sheets relating to products and Buyer further agrees not to remove or modify any safety device, warning sign, operator's manual or work handling tools. Buyer shall notify "MAM" promptly of any accident resulting from use of machinery and equipment purchased hereunder and agrees to cooperate with "MAM" in investigating and determining the cause of any such accident.

13. OSHA COMPLIANCE: "MAM" makes no guarantees or representations express or implied, that the equipment or tools purchased are in compliance with OSHA. "MAM" also will not guarantee or confirm, express or implied, that the installation or the use of the equipment or tools complies with OSHA.